

Chapter III- Special categories of Employees

Under the preceding two chapters, we tried to briefly outline what employment relation is; and how could this relation be put to an end. Within this general framework, the legislature has provided for special treatment to some categories of employees. The rationale for the special treatment is associated with the specific condition the employee is in. We will try to examine these features one by one.

3.1. Probationary employees

At the commencement of a contract of employment, the employer is entitled to set a probationary period (i.e. trial period). The purpose of probation is to test the suitability of the employee to a post in which she is intended to be assigned. Within the trial period, the employer is entitled to dismiss the employee without any procedure if the employer is convinced that the employee is unfit for the post.

In this connection, it is held that “whenever a person is dismissed for unfitness, it is sufficient that the employer **honestly believes on reasonable grounds** that the person is unfit. It is not necessary for the employer to prove that she is in fact incompetent.”

With regard to probation period, it is worth noting that the Labour law and the Civil Service Proclamation adopt varying positions.

Under the Civil Service, probation period is mandatory in the sense that every new employee should pass through the test and its length is specified by law and hence it is not subject to contractual bargain. This does not seem the case under the Labour Proclamation.

Exercise

Please refer Art. 11 of the Labour Proclamation and identify the basic features of probation under the law and compare it with the dictates of the Federal Civil Service Proclamation (Art.20 & 21) on the same subject matter. What similarities and differences did you observe between probation under the LP and the FCSP?

3.2. Apprentice

This is a situation through which the employer agrees to provide a person (i.e. the apprentice) complete and systematic training and the apprentice in return agrees to obey the instruction given to carry out the training.

Strictly speaking, such an arrangement is not an employment relationship because the main interest of the employer in this relationship is not to obtain service it is rather to provide training to the apprentice. On the other hand, the main interest of the apprentice, in this relationship, is not also to receive wage. It is rather to acquire skill. Incidentally, however, the employer will obtain service from the apprentice and the apprentice will receive stipend. These facts assimilate apprenticeship arrangement with employment relation.

An apprenticeship agreement is an appropriate route in transferring skill in those trades where skill could be acquired through “learning by doing” mechanism. Traditionally, those skills were being transferred through family line and it was members of the family who were exposed to such an opportunity. Through passage of time and the development of industrialization, however, contractual arrangement becomes the main channel for transfer of skills in such areas of trade.

An apprenticeship arrangement is only available for the employment regime under the labour law while civil service regime does not have such an arrangement. Even under the labour employment regime, it is strictly regulated in the sense that it must be made in writing and be attested by the Ministry (Art. 48(3))

As far as the law is concerned, not all trades are open to apprenticeship and hence the Ministry is empowered to spell out the list of trades open to apprenticeship and other related issues (Art.170 LP).

Problem

What happens if the contract of apprenticeship is not made in writing or even if written was not attested by the Ministry or both? Should it be held as though there was no any relation

between the parties? or should it be held as though the parties have employment relation rather than contract of apprenticeship?

3.3 Young employees¹

These are employees between the age of 14 and 18. Legally speaking, persons below the age of 18 are minors and due to this status they are not allowed to enter into juridical acts personally. As we all know, entering into a contract of employment is a juridical act. Hence it must be noted that the issue of young employees is an exception to the general rule. Actually it must be further noted that this is not the only exception in this respect. At the age of fourteen, a minor may be emancipated. (Art.312 (2) of Revised Family Code) Furthermore, a minor may make a valid will at the age of 16. (Art.295 (2)) Marriage is also possible at the age of 16. (Art.7 (2))

The Civil Service Proclamation, in principle, prohibits civil service employment below the age of majority (i.e. eighteen years of age). It, nevertheless, promises to come up with the Federal Civil Service Agency's Directive on how persons below the age of majority will be employed as civil servants(Art.14(2)).

Be this as it may, young employees, owing to their tender physical and mental make up, are treated differently under the labour law. Their differential treatment is manifested in the following terms of employment.

a) As regards to length of working hours and its timing:

- Normal working hours seven hours per day (refer Arts.61 (1) & 90)

-It is prohibited to employ young employees on:

- Night work (i.e. between 10pm-12am)
- Weekly rest days
- Overtime work
- Public holidays

b) As regards to types of work

¹ Reference to the UN Child Rights Convention is also recommended in order to possess full understanding of this issue. It is worth noting that Ethiopia ratified this Convention in 1992.

-No employment for young workers in the transporting of passengers and goods by road, rail air and internal water;

-No employment for young workers in dock sides and warehouses involving heavy lifting;

-No employment for young workers in electric power generation and transmission lines;

-No employment for young workers in under ground works (such as mines & quarries)

-No employment for young workers in sewerage systems and digging tunnels.

Problem

Who do you think is the responsible organ which should see to it that these provisions are complied with? To begin with, would such prohibition be relevant to the Ethiopian reality where a child needs to produce in order to feed him/her self? I mean wouldn't this be developed as world standard (i.e. Eurocentric standard)?

3.4. Female employees

It is well known that women have special and irreplaceable reproductive role in society. Because of this, their biological make up requires special care and attention. Moreover, most traditional cultural attitudes in society tend to discriminate against women in many respects. As an expression of these discriminatory practices, their share in the work force in most countries has been incomparable with their number in society. Hence in order to do away with such inequitable outcome many modern legal systems have already incorporated the principle of “non discrimination on the basis of sex” in their basic laws and practices. The problem with this “sameness” model is that “it fails to address the reality that women’s lives are different from men’s. It aspires to an assimilationist model that takes male role as a norm and aims to encourage women to be just like men.”² But in order to achieve genuine equality, it is necessary to break away from the idea that men’s lives are the norm and recognize the women’s lives are different.

Because of this, the principle of non discrimination, though necessary, is not sufficient by itself to bring about equitable outcomes in this respect. Thus in order to bring about equity the principle of non discrimination must be complimented by another equally important principle so called “*affirmative action*”. Unless and until these two principles are reinforced each other, past

² Linda Clarke,” The role of law in equal opportunities,” Making Gender Work(1995),p.55

misdeeds and previous marginalization may not be rectified and thereby true equality will not be attained.

In this connection, the Ethiopian legal system appears to be on the right track. The FDRE constitution has already incorporated both principles in its body of provisions. ***(Please pinpoint these principles from the operative part of the Constitution)***

As an extension of these approaches both the Civil Service Proclamation and the Labour Proclamation have included provisions with similar tone and content. Arts.13 & 41 of the Federal Civil Service and Arts. 14, 87, 88 of the Labour Proclamation could be of some help in understanding the position of the laws.

The law tries to regulate the situation of female employees from two angles. The first type of regulation is providing flat protection available to all females by virtue of being female.” *Women shall not be discriminated against as regards employment and payment, on the basis of their sex”* (Art.87 (1) Labour Proclamation). The other type of regulation is providing special provisions for females under particular circumstances such as pregnancy and maternity. (refer Arts. 87(3), (4),(5) &88 of Labour Proclamation) It must be noted however that the principle of non discrimination may be deviated from through what is so called “inherent job requirement or genuine occupational qualification” ***(please provide an example to elaborate the case)***

Problem for consideration

Some people tend to hold the view that though such protections are necessary for female employees, they may substantially reduce their employment opportunity owing to the fact that employer may not be ready to cover the whole expenses. For instance, maternity leave under the Civil code of 1960 was one month and it was only half of it that was paid (Art.2566). Under Proc. No.64/75 such leave was upgraded to forty five days and all of it was paid leave (Art.39 (2)). With the coming into force of Proc. No.42/93 maternity leave was further increased to three months in duration (pre & post natal) with full pay (Art.88) and this has been carried

forward to the currently in force Proclamation (i.e. Proc. No.377/2003). Similar position has been adopted by the Federal Civil Service Proclamation in this respect (Art.41). The Civil Service even allows for aggregation of maternity leave.

Reproduction is to the benefit of the family and society at large; if so, shouldn't the family and society (i.e. the state as representative of society) share the cost of maternity leave? Why should the employer be compelled to solely cover such expense? Wouldn't such obligation discourage employers from employing young females who can potentially be pregnant?

In this connection, a Study conducted by EWLA³ has the following to say: "The fear that is generally expressed is that, even such legitimate special treatment will eventually harm women's interest if the payment of benefits is primarily borne by the employer. Our sample survey showed that 47% of the employers said that maternity leave is very costly and 36% said that society should bear part of the cost. The prevalence of such view amongst employers and their profit motive makes it likely that they may respond by discriminating women of childbearing age in recruitment".

Is this really well founded fear and concern? If so, what type of alternative(s), which will have least restrictive effect to female employment opportunity, do you propose?

3.5. Employees with disability

Studies have verified that over 600 million people worldwide have a physical, sensory, intellectual or mental impairment in one form or another. This equals approximately 10% of the world's population. People with disabilities can be found in every country, with over two-thirds of them living in the developing world. Throughout the world there is an undeniable link between disability, poverty and exclusion. The denial of employment opportunities to people with disabilities forms one of the root causes of poverty and exclusion of many members of this group.⁴

³ See, **Berchi**, The Annual Journal of Ethiopian Women Lawyers Association, NO.5(2004), p.29

⁴ ILO Guidelines, *Achieving Equal Employment Opportunities for People with Disabilities through Legislation*, Geneva(2007), p.1

There is ample evidence that shows that people with disabilities are more likely than non-disabled persons to experience disadvantage, exclusion and discrimination in the labour market and elsewhere. As a result of these experiences, people with disabilities are disproportionately affected by unemployment. When they work, they can often be found outside of the formal labour market, performing uninspiring low-paid and low-skilled jobs, offering little or no opportunities for job promotion or other forms of career progression. Employees with disabilities are often under employed.

The issue of disability is something that deserves serious attention in Ethiopia. The level of poverty we are in will make us major producers of persons with disability. Lack of adequate medical facility and vaccination during pregnancy or childhood is one major cause for such an outcome. Moreover, lack of education associated with harmful traditional practices will also have their own share in this respect. Absence of tolerance and respect to each other, which resulted in prolonged civil war; and which has been responsible for tribal and at times religious conflicts, are also relevant in the equation. Due to these all manifestations of poverty, Ethiopia has an appreciable number of persons with disability.

Against this background, recent Ethiopian legal instruments have incorporated relevant provisions with a view to widening the employment opportunity of persons with disability. A case in point is the FDRE constitution which stipulates, “***The State shall, within available means, allocate resources to provide rehabilitation and assistance to the physically and mentally disabled***, the aged, and to children who are left without parents or guardian”(Art.41 (5) emphasis added). Proclamation No.568/2008 has also important provisions for persons with disability. The principle of “reasonable accommodation” for persons with disability seems to have been incorporated in this Proclamation (Art.6 of the Proclamation).

The principle of non discrimination on grounds of disability has also been expressly inserted under the FCSP (Art.13 (1)). Though not as express as the FCSP, the LP prohibits discrimination among employees “...on the basis of nationality, sex, religion, political outlook or ***any other condition***.”(Art.14 (1) (f) emphasis added) It may be logical to assume that the phrase “...any other condition” may be construed to include disability as a protected ground.

As mentioned on discrimination on the basis of sex above, the inherent job requirement exception to the general principle is applicable in this case, too. For example, ***a taxi company requiring job applicants to have driving license excludes visually impaired people as well as people who, due to a medical condition, no longer have a driving license. Such a license requirement on the part of the taxi company is legitimate and proportionate and therefore constitutes a genuine or justifiable occupational requirement.***

(Extract from “*Achieving Equal Employment Opportunities for People with Disabilities through Legislation*” (ILO, Guideline)

Disability as a human rights issue

For a long time, disability was treated primarily as a social welfare issue. This reflected the widely held belief that people with disabilities needed care and assistance, being unable and incapable of living their own lives. As a corollary, people with disabilities were seen as objects of social welfare and not as subjects in their own right, let alone entitled to the full enjoyment of the right to work. Due to their marginalized position in society and resulting invisibility, as well as widespread prejudice, people with disabilities did not fully enjoy their human rights, including the right to decent work.

The human rights charters and conventions adopted from the mid 1940s to the late 1960s – such as the United Nations Universal Declaration on Human Rights, 1946, the UN Covenant on Economic, Social and Cultural Rights, 1966, and the UN Covenant on Civil and Political Rights, 1966 – do not specifically mention people with disabilities. It is only since the 1970s that the disadvantages faced by disabled persons, their social exclusion and discrimination against them were increasingly perceived to constitute a human rights issue. The shift from a social-welfare approach to one based on human rights is reflected in explicit reference to persons with disabilities in human rights charters, conventions and initiatives adopted since the 1980s and in an increasing number of special – and usually non-binding – instruments adopted by such organizations as the UN and the Council of Europe. These instruments include the Council of

Europe Coherent Policy for the Rehabilitation of Persons with Disabilities, 1992, and the UN Standard Rules on the Equalization of Opportunities for Persons with Disabilities, 1993.

On 19 December 2001, the UN General Assembly adopted Resolution 56/168 establishing an “Ad Hoc Committee, open to the participation of all Member States and observers of the United Nations, to consider proposals for a comprehensive and integral international convention to promote and protect the rights and dignity of persons with disability, based on the holistic approach in the field of social development, human rights and non-discrimination and taking into account the recommendations of the Commission on Human Rights and the Commission for Social Development.” On the recommendation of the Ad Hoc Committee (AHC) at its Second Meeting in June 2003, a decision was taken to proceed with the development of such a convention. Following three years of negotiation involving governments, with active participation of UN agencies, organizations of persons with disabilities, national human rights institutions and other civil society representatives, the draft text of the Convention including an optional protocol, was approved at the Eighth Session of the AHC in August 2006. The UN General Assembly formally adopted the Convention in a vote by consensus **on 13 December 2006.**

Similar shifts from a social welfare to a human rights law approach are taking place on a regional and national level, with an increasing number of existing human rights instruments being amended, to include the rights of people with disabilities, and new instruments being adopted, both comprehensive and disability specific.

The concept of disability

When legislation is being formulated to eliminate the disadvantages faced by disabled persons, to dismantle the exclusionary mechanisms they face in society, and to enhance equal employment opportunities for them, the question arises of how to define the beneficiaries of the legislation. In other words: what constitutes a disability?

In this discussion, two opposing views can be distinguished. On the one hand, there are those who situate the problems of disability in the person concerned, while paying little or no attention to his or her physical or social environment. This is referred to as the individual or medical

model of disability. On the other hand, there are those who perceive disability as a social construct: disabilities result from the failure of the physical and social environment to take into account the needs of particular individuals and groups. According to this social model of disability, society creates disabilities by accepting an idealized norm of the physically and mentally perfect person and by organizing society on the basis of this norm.

Examples:

According to the individual model of disability, a person with mobility impairment is disabled as a result of an individual impairment. He or she can try to overcome the functional limitations which come along with this by undergoing medical or paramedical treatment and/or by using medical or paramedical aids, such as a wheelchair or crutches.

According to the social model of disability, mobility impairment should be seen in the context of the surrounding society and environment. Reducing or overcoming the limitations on activities and restrictions to participation associated with mobility impairment implies taking away societal barriers, and ensuring that the built environment is accessible.

- ❖ Both the social and individual models of disability have proven to have advantages and constraints, depending on the aim of the legislation. The individual or medical model can be particularly helpful in such fields as rehabilitation medicine and social security law, while the social model can be instrumental in tackling the root causes of exclusion, disadvantage and discrimination. The social model recognizes that the answer to the question of whether a person can be classified as disabled is intrinsically related to such factors as culture, time and environment.

Defining disability in legislation

The definition of disability, which determines who will be recognized as a person with a disability, and hence protected by the relevant legislation, is very much dependent on the goal being pursued by the particular law or policy. Thus, there is no single definition of disability which can be used in all labour and social legislation. The two different approaches to definition are as follows.

- Wording aimed at a narrow, identifiable beneficiary group. This should be used if the aim is to craft laws to provide financial or material support to disabled individuals, or employers of disabled people. A limited, impairment-related definition of disability (individual model)

thereby ensures that support is targeted at those who are most in need.

- Broadly inclusive wording aimed at protection from discrimination on the grounds of disability. This broader definition of the protected group (social model) should be used in anti-discrimination laws because many people, including those with minor disabilities, people associated with people with disabilities and those who are wrongly assumed to have a disability, can be affected by disability-based discrimination.

Reasonable accommodation

Disability can sometimes affect an individual's ability to carry out a job in the usual or accustomed way. The obligation to make a reasonable or effective accommodation, or the right to be accommodated, is often found in modern disability non-discrimination law. Disability non-discrimination legislation increasingly requires employers and others to take account of an individual's disability and to make efforts to cater for the needs of a disabled worker or job applicant, and to overcome the barriers erected by the physical and social environment. This obligation is known as the requirement to make a reasonable accommodation.⁵ The failure to provide a reasonable accommodation to workers and job applicants, who face obstacles in the labour market, is not merely a bad employment practice but is increasingly perceived as an unacceptable form of employment discrimination.

Examples of a reasonable accommodation:

- an adjusted office chair (for a person with a back impairment), adapted working hours (e.g. for a person with a medical condition requiring frequent rest-breaks),
- a computer keyboard with a Braille reader (for a blind person), and
- the assignment of a job coach (e.g. for a person with an intellectual or mental health disability).

The law should define closely what is meant by reasonable accommodation, so that misinterpretation is avoided and employers clearly understand what they must do.

Example:

In the **United States**, the obligation to make a reasonable accommodation is to be found in the

⁵ The obligation is also sometimes referred to as a reasonable adjustment or an effective accommodation/adjustment.

Americans with Disabilities Act, 1990. Reasonable accommodation is understood to mean any change in the work environment or in the way a job is performed that enables a person with a disability to enjoy equal employment opportunities. There are three categories of "reasonable accommodations": changes to a job application process, changes to the work environment or the way a job is usually done, and changes that enable an employee with a disability to enjoy equal benefits and privileges of employment, such as access to training.

Other countries, including Australia, New Zealand and South Africa have legal provisions stipulating that the failure to provide a reasonable accommodation constitutes a form of discrimination.

The Ethiopian Act for the Right to employment for Persons with Disability of 2008 defines “a person with disability” ***as an individual whose equal employment opportunity is reduced as a result of his physical, mental or sensory impairments in relation with social, economic and cultural discrimination.***

Shifting the burden of proof

Under some legislation, a person who considers his or herself wronged because of discrimination has to produce evidence to prove that this has occurred. In some cases it may be possible to collect this necessary evidence without difficulty – such as in the case of recruitment, where advertisements for job vacancies and recruitment materials are easily available. In other cases, involving an action which is suspected rather than established, it may prove impossible to gather credible evidence. This is true, for example, when the information and records that might constitute evidence are held by the person against whom the claim is made (for example, by an employer in an equal pay case). This person may be able to win the case by saying nothing and simply challenging the evidence produced. In practice, this requirement has been recognized as one of the greatest obstacles to obtaining a fair and just result.

To deal with this major procedural problem, many countries have shifted the burden of proof away from the person bringing the claim to court. In many jurisdictions it now suffices for such a person to establish, before a court or other competent authority, facts from which it may be presumed that there has been discrimination. After this, it is for the person who allegedly discriminated to prove that there has been no discrimination. Such a shift of the burden of proof

does justice to the fact that it is usually very difficult, if not impossible, for a person to prove that he or she have been subjected to discrimination. A reversal of the burden of proof makes non-discrimination law effective.

In 2003, all fifteen countries of the **European Union** (EU) were required to introduce laws or amendments to their laws or other legal instruments to allow for a reversal of the burden of proof in employment discrimination cases involving direct or indirect discrimination. All new Member States will also have to follow suit. This follows from a European Union law (a directive) adopted by the Council of Ministers in the year 2000. The Directive stipulates that disability discrimination cases are subject to a reversal of the burden of proof in favour of the employee or job applicant with a disability from 2003 onwards.

The Disability Act of Ethiopia (2008) has also incorporated this principle. It reads as follows:
7(1) Any person with disability who alleges that discrimination on ground of disability existed with respect to recruitment, promotion, placement, transfer or other conditions of employment may institute a suit to the competent court on the issue with out the requirement of the burden of proof. 7(2) The defendant to a suit instituted pursuant to sub-article (1) of this article shall be responsible to p[rove that there was no act of discrimination thereof.

3.6. Non Ethiopian employees

With the integration of the global economy, goods and services have been crossing borders at ease. With a relatively relaxed freedom of movement of persons across borders, labour in the form of service needs a certain degree of regulation when it avails itself outside of its country of origin.

The international division of labour with respect to trade in goods seems to have its reflection on trade in services, too. With respect to trade in goods, the South(developing countries) exports raw materials at cheap price to the markets of the North(developed countries), while the latter ships finished and expensive goods to the markets of the South. By the same token, unskilled, more often than not, illegally exported and cheap labour is being exported from South to North; the North lawfully exports professional/skilled and highly expensive labour to the markets of the

South.⁶ Informally speaking, labour exported from South to North is assigned in the so-called “3d jobs” (i.e. Dangerous, Demanding and Degrading) where the nationals of the host state are **unwilling** to engage in. Conversely, labour exported from North into the South will be employed in white collar jobs where the nationals of the host state are **incapable** of engaging in. It appears that such a reality seems to remain intact for some years to come, if not decades.

Every country has an express or implied policy on how non nationals are to avail themselves to its domestic labour market. As expression of this sovereign authority, the Ethiopian legislature lays down conditions on the basis of which foreign nationals may be employed in Ethiopia. (refer. Art.174 LP & Art.15 & 22(2) FCSP). Ethiopian law seems to give priority of employment to its nationals which is in consistent with the general practice of states world wide. It is when a particular type of service is not available in the domestic market that a foreigner may be employed. Moreover, employment of foreign national is temporary and for limited duration. It must also be noted that there are specific areas of employment where foreigners may not have access to employment such as defense, security and foreign affairs.

As a requirement, for a foreigner to be lawfully employed in Ethiopia, he/she needs to possess double permits.(**namely; Residence Permit & Work Permit**) The Power to issue Residence Permit is vested on the Security, Immigration and Refugee Affairs Authority; while Work Permit is to be issued by the Ministry of Labour and Social Affairs.(Art.174 LP)

Under the Civil service employment regime, there is an express provision which stipulates “a person who is not an Ethiopian national may not be eligible to be a civil servant”. Nevertheless, the same instrument seems to provide exceptions to the general rule with respect to foreigners of Ethiopian origin (Art.15 FSCP). Even in situations where it is impossible to fill a vacant position that requires high level professional by an Ethiopian, it is only for temporary bases that a foreigner may be employed (Art.22 (2)). Such measure also requires a directive from the Federal Civil Service Agency.

⁶ As an exception to this general trend, it has been witnessed that few skilled human power cross the borders of the North from South through the “brain drain arrangement”.